SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: W.P. (Crl.) No. 1770 of 2019 (YEAR: 2019)

CORAM: R. BANUMATHI, A.S. BOPANNA, HRISHIKESH ROY

P. Chidambaram
... Appellant(s) / Petitioner(s)
Versus
Directorate of Enforcement
... Respondent(s)

Acts Referred:	Prevention of Money Laundering Act, 2002, Code of Criminal Procedure, 1973
Sections:	Section 45 PMLA, Section 439 CrPC

JUDICIAL HEADNOTE & SUMMARY

Emphasized that bail considerations turn on the triple test: whether the accused is a flight risk, likely to tamper with evidence, or likely to influence witnesses.

RATIO DECIDENDI

The Court held that: Emphasized that bail considerations turn on the triple test: whether the accused is a flight risk, likely to tamper with evidence, or likely to influence witnesses. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in P. Chidambaram v. Directorate of Enforcement (W.P. (Crl.) No. 1770 of 2019) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Prevention of Money Laundering Act, 2002, Code of Criminal Procedure, 1973, particularly Section 45 PMLA, Section 439 CrPC. Emphasized that bail considerations turn on the triple test: whether the accused is a flight risk, likely to tamper with evidence, or likely to influence witnesses.

OPERATIVE ORDER

ORDER: Decided